

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 908

Introduced by Storm, 23; Lonowski, 33.

Read first time January 08, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Parenting Act; to amend section
- 2 43-2923, Reissue Revised Statutes of Nebraska; to require courts to
- 3 consider certain research in determining the best interests of the
- 4 child; and to repeal the original section.
- 5 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 43-2923, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 43-2923 The best interests of the child require:

4 (1) A parenting arrangement and parenting plan or other court-
5 ordered arrangement which provides for a child's safety, emotional
6 growth, health, stability, and physical care and regular and continuous
7 school attendance and progress for school-age children;

8 (2) When a preponderance of the evidence indicates domestic intimate
9 partner abuse, a parenting and visitation arrangement that provides for
10 the safety of a victim parent;

11 (3) That the child's families and those serving in parenting roles
12 remain appropriately active and involved in parenting with safe,
13 appropriate, continuing quality contact between children and their
14 families when they have shown the ability to act in the best interests of
15 the child and have shared in the responsibilities of raising the child;

16 (4) That even when parents have voluntarily negotiated or mutually
17 mediated and agreed upon a parenting plan, the court shall determine
18 whether it is in the best interests of the child for parents to maintain
19 continued communications with each other and to make joint decisions in
20 performing parenting functions as are necessary for the care and healthy
21 development of the child. If the court rejects a parenting plan, the
22 court shall provide written findings as to why the parenting plan is not
23 in the best interests of the child;

24 (5) That certain principles provide a basis upon which education of
25 parents is delivered and upon which negotiation and mediation of
26 parenting plans are conducted. Such principles shall include: To minimize
27 the potentially negative impact of parental conflict on children; to
28 provide parents the tools they need to reach parenting decisions that are
29 in the best interests of a child; to provide alternative dispute
30 resolution or specialized alternative dispute resolution options that are
31 less adversarial for the child and the family; to ensure that the child's

1 voice is heard and considered in parenting decisions; to maximize the
2 safety of family members through the justice process; and, in cases of
3 domestic intimate partner abuse or child abuse or neglect, to incorporate
4 the principles of victim safety and sensitivity, offender accountability,
5 and community safety in parenting plan decisions; and

6 (6) In determining custody and parenting arrangements, the court
7 shall consider the best interests of the minor child, which shall
8 include, but not be limited to, consideration of the foregoing factors
9 and:

10 (a) The relationship of the minor child to each parent prior to the
11 commencement of the action or any subsequent hearing;

12 (b) The desires and wishes of the minor child, if of an age of
13 comprehension but regardless of chronological age, when such desires and
14 wishes are based on sound reasoning;

15 (c) The general health, welfare, and social behavior of the minor
16 child;

17 (d) Credible research showing increased intellectual and social
18 growth in children who have equal access to both parents;

19 (e) ~~(d)~~ Credible evidence of abuse inflicted on any family or
20 household member. For purposes of this subdivision, abuse and family or
21 household member shall have the meanings prescribed in section 42-903;
22 and

23 (f) ~~(e)~~ Credible evidence of child abuse or neglect or domestic
24 intimate partner abuse. For purposes of this subdivision, the definitions
25 in section 43-2922 shall be used.

26 **Sec. 2.** Original section 43-2923, Reissue Revised Statutes of
27 Nebraska, is repealed.